Reconstruction Plans, 1863–1864

Lincoln's Ten Percent Plan (Dec. 8, 1863) & the Wade-Davis Bill (July 1864)

Source: Lincoln's Proclamation of Amnesty and Reconstruction (Dec. 8, 1863) and the Wade-Davis Bill (1864), text via Teaching American History (its editorial cuts are shown as . . .). Public domain.

Even before the Civil War ended, Lincoln and Congress disagreed sharply over how to readmit Confederate states. Lincoln's Proclamation of Amnesty and Reconstruction offered lenient terms — any state could rejoin the Union once 10% of its 1860 voters swore loyalty. Radical Republicans in Congress passed the much harsher Wade-Davis Bill, requiring 50% loyalty oaths and excluding former Confederates from the constitutional conventions. Lincoln pocket-vetoed Wade-Davis. The dispute previewed the bigger battle between Andrew Johnson and Congress after Lincoln's death.

Connect: The debate between Lincoln and Congress over Reconstruction is really a debate about who won the war — the executive or the legislature. Which branch had more power during the actual war?

Key Passages

Lincoln's Ten Percent Plan

> a number of persons, not less than one tenth in number of the votes cast in such State at the presidential election of the year of our Lord one thousand eight hundred and sixty, each having taken the oath aforesaid and not having since violated it . . . shall re-establish a State government which shall be republican, and in no wise contravening said oath, such shall be recognized as the true government of the State

Ten Percent Plan — the freedpeople

> any provision which may be adopted by such state government in relation to the freed people of such state, which shall recognize and declare their permanent freedom, provide for their education, and which may yet be consistent, as a temporary arrangement with their present condition as a laboring, landless, and homeless class, will not be objected to by the National Executive.

Wade-Davis Bill (majority loyalty)

> if the persons taking that oath shall amount to a majority of the persons enrolled in the State, he shall, by proclamation, invite the loyal people of the State to elect delegates to a convention

Wade-Davis Bill — required provisions

> First. No person who has held or exercised any office, civil or military, except offices merely ministerial, and military offices below the grade of colonel, state or confederate, under the usurping power, shall vote for or be a member of the legislature, or governor. Second. Involuntary servitude is forever prohibited, and the freedom of all persons is guaranteed in said State.

HIPP Analysis

Model answers fill the first three rows. Use them to explain the author's Purpose in the last row.

HIPP Element	Your Analysis
Historical Situation *What was happening when this was written?*	The Civil War was not yet won (1863-64), but Union forces held parts of the South; Lincoln and Congress argued over who controlled Reconstruction.
Intended Audience *Who was the source written for?*	Ten Percent Plan: Southern whites and Confederates who might return to loyalty. Wade-Davis Bill: Congress and Unionists demanding tougher terms.

HIPP Element	Your Analysis
Point of View *Whose perspective? Whose is missing?*	Lincoln, who wanted quick, lenient reunion, versus Radical Republicans (Wade and Davis) who wanted to punish the South; freedpeople had little voice in either plan.
Purpose *What did the author want to accomplish?*	

Analysis Prompts

1. Contextualization (DBQ/LEQ, 1 pt): Place these two plans in the broader 1863–1877 Reconstruction debate.
2. Identify ONE provision that shows how differently Lincoln and Congress understood the war.
3. Whose plan was more ‘just’ to the freedpeople? Defend your view.